

PRESIDIO®

MISCONDUCT - UNDER PRESIDIO INDIA HR POLICY

Last Reviewed Date: January 13, 2025



Introduction

Policy Objective:

The purpose of this policy is to define and communicate acceptable workplace behaviors and establish a framework for addressing instances of misconduct at Presidio India. This policy aims to:

- Maintain a professional and respectful work environment.
- Ensure adherence to the organization's core values and ethical standards.
- Promote compliance with applicable labor laws and internal regulations.
- Protect the company's interests, including its reputation, resources, and intellectual property.

By providing guidelines and procedures for identifying, reporting, and addressing misconduct, this policy seeks to foster fairness, accountability, and transparency within the organization, thereby contributing to a safe and productive workplace for all employees.

Process Applicability:

This policy applies to all full-time employees, Contractors, interns, consultants, and part-time employees of Presidio India, including those working in any department, function, or location within the organization.

Policy Guidelines & Process

Disciplinary Action for Misconduct:

An Employee may be suspended or terminated or dismissed without notice if an Employee is found to be guilty of misconduct under the Presidio India HR Policy.

Furthermore, any other conduct or behavior of an employee, including but not limited to the below mentioned, that are viewed as detrimental to the Presidio India HR policy shall be treated as misconduct and subject to disciplinary action.

Composition:

The enquiry committee for Chennai, Coimbatore & Bangalore's office shall consist of:

Chennai:

- Gopinathan Pandurangan: Senior Vice President & Country Head, India
- Sangeetha Gupta: Director - HR Operations
- Rajesh Lakshmanan: Delivery Manager
- Shridevi Kandasami: Project Manager
- Radha: Advocate (Consultant)

Coimbatore:

- Gopinathan Pandurangan: Senior Vice President & Country Head, India
- Sangeetha Gupta: Director - HR Operations
- Ramkumar Kuppuchamy: Delivery Director, Digital
- Aarthi Govardhanan: Senior Delivery Manager
- Radha: Advocate (Consultant)

Bangalore:

- Gopinathan Pandurangan: Senior Vice President & Country Head, India
- Sangeetha Gupta: Director - HR Operations
- Ajay Kumar: Delivery Director
- Lakshmi MR: Architect
- Radha: Advocate (Consultant)

The following Act / Behaviour shall denote Misconduct:

1. Theft, fraud, or dishonesty in connection with the employer's business or property.
2. Taking or giving of bribes or an illegal gratification whatsoever in connection with the employer's business or his own interests.
3. Acceptance of gifts from any employee / any Internal or External Stakeholders with the exception of edible products only.
4. Willful insubordination or disobedience, whether alone or in conjunction with another or others, or of any lawful or reasonable order of a superior. The order of the superior should normally be in writing.
5. Habitual late attendance and habitual absence without leave or without sufficient cause.
6. Drunkenness, fighting or riotous, disorderly or indecent behaviors while on duty at the place of work. Being in the state of intoxication inside the premises or any other place connected with the Company or bringing alcoholic liquor or any narcotics into the office premises.
7. Habitual negligence or neglect of work.
8. Habitual indiscipline.
9. Smoking except in places specified and set apart for the purpose.
10. Willful damages or damages due to negligence or carelessness to work in process or to any other property of the Company.
11. Sleeping on duty, sleeping in places other than the rest areas.
12. Malingering or showing down work.
13. Conviction in any Court of Law for any criminal offence involving moral turpitude.

14. Continuous absence without permission and without satisfactory cause for more than ten days.
15. Giving false information regarding one's name, age, father's name, qualification or previous service at the time of the employment.
16. Habitual breach of any rules, regulations, by-laws or instructions from Management or department Head.
17. Threatening, abusing, insulting, intimidating, or assaulting any employee or superiors within the premises of the establishment or outside, and if such threat or abuse or insult or intimidation or assault is in connection with the employment.
18. Habitual moneylending.
19. Preaching of or inciting to violence.
20. Abetment of or attempt at abetment of any of the above acts of misconduct.
21. Going on illegal strike either singly or inciting others to strike work in contravention of the provisions of the Industrial Disputes Act, 1947, (Central Act XIV of 1947), or any other enactment or rules for the time being in force.
22. Disclosing to any unauthorized person of any confidential information in regard to the working or process of the establishment which may come into the possession of the employee in the course of his work.
23. Refusal to receive any notice, memo or other communications served by the Management.
24. Failure or refusal to wear or use any protective equipment given by the employers.
25. If the background check report found to be negative or turns out to be an unfavorable report or a red report during employment or while joining.
26. Drug addiction, drunkenness, Riotous or disorderly behavior in the premises of the Company or any act subversive of discipline within or outside the Company in Connection with employment.
27. Engaging in any other employment under any other employer or Company in any capacity without the permission of the Management.
28. Tendering false evidence in any enquiry, trial or proceedings to which the employee or the Management is a party.

29. Trespassing, forcibly occupying, squatting, or remaining anywhere within the premises of the Company with a view to intimidate, coerce or threaten the Management or co-employee
30. Deliberately making false, vicious, or malicious statement in public or otherwise against the management or any Superior or co-employees of the Company.
31. Loitering, idling, or wasting time during working hours.
32. Shouting slogans or staging demonstration inside or outside the office premises against the management in connection with employment.
33. Quarrelling with, bullying or misbehavior towards co-employee or Superiors inside or outside the premises in connection with employment.
34. Committing nuisance or conduct or doing any act prejudicial to the health and safety of the co-employees or cleanliness of the premises.
35. Disobedience, using impertinent language, indecent gestures/expression, misbehavior or insinuation towards co-employees or superiors or with an enquiry officer.
36. Resorting to unlawful activities alone or along with others with a view to coerce the management to concede any demand.
37. Interfering with or disregard to any safety guard or device provided for the purposes of securing safety of the employee, office premises or property of the Company.
38. Falsification of any record or document of the Company or giving incorrect information for preparing any record or committing error in the maintenance of records.
39. Possession of any lethal weapons or explosives, ignitable or inflammable materials other than those required for the work within the premises.
40. Failure to report sufferance of any contagious disease to the management.
41. Carrying unauthorized persons in the Company vehicles.
42. Unauthorized entry or remaining inside the premises after the working hours without obtaining prior permission from the Management.

43. Misuse or wasting of any Company property.
44. Unacceptable or Inappropriate behavior, adverse act, unethical relationships during official stays provided by the Company and before external clients.
45. Not adhering with dress code during client visits and accompanying friends or relations for client visits or official travels and official stays.
46. Canvassing for votes during working hours for any election or collecting funds or engaging in trade union activities.
47. Refusing to come to office or meet officials as and when required in connection with employment.
48. Canvassing or taking signature or carrying on any propaganda which is harmful to the establishment or its peaceful or efficient working.
49. Indulging in Sexual harassment which includes such unwelcome sexually determined behavior (Whether directly or by implication) as:
 - Physical contact and advances
 - A demand or request for sexual favors
 - Sexually colored remarks
 - Showing Pornography
 - Any other unwelcome physical, verbal or non-verbal conduct of sexual nature
50. Discrimination against LGBTQ individuals, discrimination based on race, gender, disability, sexual orientation, gender identity, gender expression or any other protected characteristic. Recognizing sexual orientation and gender identity are fundamental aspects of their identity.